

1.

CASE #	CASE NAME	HEARING NAME
CVME2504483	PATTON VS VIMERCATI	MOTION FOR RELIEF FROM DEFAULT

Tentative Ruling: DENIED

2.

CASE #	CASE NAME	HEARING NAME
CVME2504483	PATTON VS VIMERCATI	MOTION FOR RECONSIDERATION OF APRIL 13, 2026 ORDER DENYING DEFENDANT'S MOTION FOR RELIEF FROM DEFAULT

Tentative Ruling: DENIED

3.

CASE #	CASE NAME	HEARING NAME
CVME2511791	DEGLER VS DEGLER	MOTION FOR ENTRY OF DEFAULT INTERLOCUTORY JUDGMENT OF PARTITION BY SALE

Tentative Ruling: GRANTED

4.

CASE #	CASE NAME	HEARING NAME
CVME2517523	GAMEZ VS CWD WEST CORP.	MOTION TO STRIKE

Tentative Ruling: Off Calendar 07/22/26

5.

CASE #	CASE NAME	HEARING NAME
CVME2600208	CARRERA VS IBARRA	MOTION TO STRIKE

Tentative Ruling: Deny

On January 13, 2024, Plaintiff Evilio Carrera, Jr., an officer with the Menifee Police Department, was on duty in his patrol vehicle and driving at the intersection of Haun Road and New Hub Drive in Menifee. Defendant Bella M. Sule, erroneously sued and served as Ivet Ibarra, ("Defendant") failed to come to a complete stop at the intersection and struck the rear passenger wheel well causing him personal injuries. Plaintiff alleges officers on the scene detected a strong odor of marijuana emanating from Defendant's person and vehicle and she was arrested for suspicion of driving under the influence of drugs.

On January 1, 2026, Plaintiff Evilio Carrera, Jr. and his wife Minerva X. Carrera ("Plaintiffs"), filed the instant action alleging the following four causes of action against Defendant: 1) Negligence; 2) Negligence Per Se; 3) Exemplary Damages; and 4) Loss of Consortium.

Defendant now moves to strike the 3rd cause of action for Exemplary Damages and the prayer for punitive damages. (C.C.P., § 436.) Defendant argue Plaintiff has failed

to plead aggravating facts that would support punitive damages under *Taylor v. Superior Court* (1979) 24 Cal.3d 890. She argues she was released without any charges ever being brought.

In opposition, Plaintiffs argue they have alleged all predicate facts necessary for a claim for punitive damages. Whether the conduct is sufficiently despicable is a factual question not determined at the pleadings stage. Plaintiffs argue the existence or nonexistence of charges being brought is extrinsic and irrelevant. They request leave to amend in the event the Court concludes additional facts are needed.

As of July 27, 2026, at 1:15pm, no reply is available in eCourt.

Counsel for Defendant filed a meet and confer declaration in compliance with C.C.P., § 435.5. (Decl. of Matthew C. Anderson, ¶¶ 4-6.)

Malice is defined as “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code, § 3294(c)(1).) Despicable conduct has been defined as bile, base or contemptible conduct. (*College Hospital, Inc. v. Sup. Ct.* (1994) 8 Cal.4th 704, 725.) Oppression is despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights. (Civ. Code, § 3294(c)(2).) Fraud includes intentional misrepresentations, deceit and concealment of material facts. (*Id.* at (c)(3).)

Thus, with sufficiently alleged supporting facts, the specific allegation that Defendant was driving while intoxicated “with a conscious disregard for the safety of others” can be sufficient to support the element of “malice” under Civil Code § 3294. (*G.D. Searle, supra*, 49 Cal.App.3d at 32; *Taylor v. Sup. Ct.* (1979) 24 Cal.3d 890, 894-895; *Dawes v. Sup. Ct.* (1980) 111 Cal.App.3d 82, 88.)

In *Taylor*, the California Supreme Court recognized the pervasive risk in operating a motor vehicle while intoxicated because it combines “sharply impaired physical and mental faculties with a vehicle capable of great force and speed, [which] reasonably may be held to exhibit a conscious disregard of the safety of others.” (*Taylor, supra*. 24 Cal.3d 890, 896-897.) There, it was alleged in the complaint that defendant was an alcoholic, regularly drove under the influence of alcohol, had previously caused a serious motor vehicle accident, had been convicted of prior DUI’s, and was driving while drinking.

The Court noted those specific aggravating factors were not essential prerequisites to the assessment of punitive damage in drunk driving cases. (*Id.* at 896.) Nonetheless, the Court found these allegations sufficient to support a claim for punitive damages. **The *Taylor* Court held that voluntarily consumption of alcohol to the point of intoxication, when “knowing from the outset” that he or she must drive thereafter shows conscious disregard, and sufficiently alleges punitive damages claim. (*Taylor, supra*. 24 Cal.3d. at 895-900.)**

Here, Plaintiffs complaint alleges that on the day of the accident, Defendant smoked marijuana before driving “to the point of being under the influence or to the point that Defendant was unable to control her body or her faculty,” that she did so “despite knowing she would be operating a motor vehicle,” and that she was aware that driving under the influence carried a risk of serious injuries of others and proceeded to drive a vehicle anyway in conscious and wanton disregard for the rights and safety of others on the roadways. (Comp., ¶¶ 42-44.) As a direct result, Plaintiff Evelio Carrera, Jr., suffered injuries to his neck, mid-back, low back, and left elbow, along with headaches, requiring ongoing medical treatment. (*Id.* ¶¶ 45-47.) Said allegations appear sufficient for pleading purposes under *Taylor*.

5.

CASE #	CASE NAME	HEARING NAME
CVME2602860	WILLIAMS VS TESLA, INC	MOTION TO COMPEL BINDING ARBITRATION

Tentative Ruling: GRANT; stay issued.

Defendant moves to compel arbitration and stay the action pursuant to two arbitration provisions that Plaintiffs electronically accepted: the Motor Vehicle Order Agreement (the “Order Agreement”) on March 5, 2024, when Plaintiff placed the order for the Vehicle (Kim Decl., ¶¶3-4, Exh. 1, “Order Agreement”) and the Retail Installment Sales Contract (“RISC”) executed on May 15, 2024, when Plaintiffs took delivery of the Vehicle for the purchase on credit. (*Id.*, Exh. 2, “RISC”). The Order Agreement contained an opt-out provision that Plaintiffs did not utilize. (*Id.* at ¶7.) Defendant argues the Federal Arbitration Act (“FAA”) and California law require Plaintiffs to arbitration their claims, which fall within the scope of both arbitration clauses. Citing to *Sanchez v. Valencia Holding Co.* (2015) 61 Cal.4th 899, Defendant maintains the Agreement is not unconscionable.

In opposition, Plaintiffs argue Tesla failed to meet its burden to show Plaintiffs agreed to arbitrate under the Order Agreement because there is no evidence Plaintiffs signed or agreed to the terms of the Order Agreement, relying on *Herzog v. Superior Court* (2024) 101 Cal.App.5th 1280, 1296. Plaintiffs further argue the Order Agreement does not apply to Plaintiffs’ claims because it relates to the ordering of the Vehicle, not the subsequent purchase or any subsequent claims about Tesla’s failures to repair the Vehicle pursuant to warranty. Plaintiffs assert they never signed or agreed to arbitration contained in the RISC either. Lastly, the arbitration clauses are unconscionable.

In reply, Defendant points out Plaintiffs do not dispute that they placed the order themselves for the Vehicle, nor do they dispute the order process described by Raymond Kim (“Kim”), Defendant’s Manager of Business Resolution. Defendant argues Plaintiffs claims fall under the scope of the agreements to arbitrate, and Plaintiff relies on inapplicable authority to argue otherwise. Defendant maintains the arbitration provisions are not unconscionable. Defendant submits a supplemental declaration by Kim regarding the click through order process as evidence of Plaintiffs’ acceptance of the Order Agreement and the arbitration provision contained therein. (Kim Supp. Decl., ¶¶3-4.) “The general rule of motion practice...is that new evidence is not permitted with reply papers.” (See *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537; *Espejo v. SCPMG* (2016) 246 Cal.App.4th 1047; *Ruiz v. Moss* (2014) 232 Cal.App.4th 836.) However, there is a limited